

Plaintiff shall make a showing on date of motion that dismissal in this case is warranted. This court will allow the presentation of oral evidence on date of motion.

3. 9:00 AM CASE NUMBER: L25-11200
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. DERRICK SHELTON
***HEARING ON MOTION IN RE: TO SET ASIDE ENTRY OF DEFAULT**
FILED BY: SHELTON, DERRICK
***TENTATIVE RULING**

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Defendant filed a Motion to set aside Entry of Default - which was filed on 12/26/25 - under Section 473(b) of the Code of Civil Procedure. Plaintiff filed a response.

Analysis

Defendant cites mistake, inadvertence, or excusable neglect, as a reason – or reasons – for his failure to respond to Plaintiff’s Complaint, yet offers no description for the mistake, inadvertence, or excusable neglect.

It is Defendant’s burden to show the court that at least one of these occurred, yet he has failed to do so.

Disposition

The Motion is denied. Plaintiff shall prepare the Order.

4. 9:00 AM CASE NUMBER: MSL06-05109
CASE NAME: CAVALRY PORTFOLIO SERVICES, LLC VS. MARIA URIBE
***HEARING ON MOTION IN RE: TO VACATE DEFAULT JUDGMENT**
FILED BY: CAVALRY PORTFOLIO SERVICES, LLC
TENTATIVE RULING:

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Plaintiff filed a Motion to Set Aside Default Judgment, and dismiss the action, under Section 473 of the CCP, on the basis that the underlying account between Plaintiff and Defendant was the consequence of fraudulent activity against the Defendant.

Disposition

The Motion to Set Aside is granted. The case is dismissed without prejudice. Plaintiff shall prepare the Order.

5. 9:00 AM CASE NUMBER: MSL07-00470

CASE NAME: LHR, INC. VS. WIESLAW ZIEBA

*HEARING ON MOTION IN RE: TO AMEND JUDGMENT AND RENEWAL OF JUDGMENT TO CHANGE PLAINTIFF'S NAME

FILED BY: PHARUS FUNDING LLC, AS SUCCESSOR IN INTEREST TO LHR, INC.

TENTATIVE RULING:

PLEASE NOTE: If this tentative ruling is timely contested (by 4:00 p.m. on Monday, February 23, 2026), the hearing will take place on Tuesday, March 3, 2026, at 9:00 a.m.

Background

Plaintiff filed this Motion to amend the name of the original Plaintiff on the Judgment, LHR, Inc., to Daz Funding, as a successor-in-interest, ultimately, to LHR.

The Motion is unopposed.

Proof of service by mail was filed, indicating mail service on Defendant at an address where he had been personally served in the matter on 9/27/12. No subsequent changes of address have been filed with the court by Defendant.

Analysis

Case law suggests that a trial court has discretion to amend the name of a Defendant, under Section 187 of the Code of Civil Procedure, when the doing so would simply identify the Defendant by the name of its alter ego. See *Greenspan v. LADT, LLC* (2010) 191 Cal.App.4, 486, 508; and *Miski v. D 'Arco* (2011) 197 Cal.App.4th 1065, 1074. The reasoning in these cases is that there was no change in the real defendant in the matter, and that the defendant – even under its alter ego - “[I]n fact had control of the previous litigation and thus were virtually represented in the lawsuit.” See *Greenspan v. LADT, LLC, supra*, 191 Cal.App.4 at 508. Moreover, in these matters, “The greatest liberality is to be encouraged in the allowance of such amendments in order to see that justice is done.” *Id.*

To begin with, in the instant matter, this court finds proper service of Defendant.

Next, though it is Plaintiff that seeks a change of its own name on the Judgment, as a successor in interest, rather than that of Defendant, the court sees no difference. There is no prejudice to the Defendant. Defendant’s ability to defend themselves is in no way affected.

Disposition